



**DAVAO DEL NORTE  
STATE COLLEGE**

New Visayas, Panabo City,  
Davao del Norte

# DATA PRIVACY MANUAL

*Series of 2025*



## INSTITUTIONAL STATEMENTS

### VISION

An Institution Leading in Agri-Fisheries and Socio-Cultural Development in the ASEAN Region.

### MISSION

DNSC shall produce future-ready workforce, create innovative solutions and technologies, empower communities, and uphold good governance towards sustainable development.

### CORE VALUES

The College commits to pursue our vision, accomplish our mission, and achieve our goals through our core values of:

- Stewardship
- Adaptability and Excellence
- Integrity and Innovativeness
- Love of God and Country

### QUALITY POLICY

We, at Davao del Norte State College (DNSC), commit to provide quality, excellent, and timely services responsive to the needs of our Clients and Stakeholders following the principles of good governance, and in adherence to our core values.

We likewise commit to regularly assess the delivery of our services, manage risks, and maximize opportunities to guarantee the highest professional and ethical standards as we continually improve our Quality Management System.

We, the Top Management, further commit to review the Quality Policy for its continuing suitability and ensure that this is communicated and understood within the organization.

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## FOREWORD

It is my pleasure to present to you the Data Privacy Manual of Davao del Norte State College.

One of the most critical aspects of our operations in the College is the protection of personal and institutional data information that is collected, stored, shared, and utilized across various platforms and processes. In today's digital age, where cyber threats evolve rapidly, cybersecurity is no longer the sole responsibility of our IT professionals. It is a shared commitment among all DNSC personnel. Whether we are managing institutional records, communicating online, or simply browsing the internet, every click, download, and shared file carries potential risks.

As employees of DNSC, we are accountable for the data we handle, post, and share, whether through official channels or personal accounts. Often, we may unknowingly engage in risky online behavior, only realizing the consequences when it's too late. Cybersecurity is not just about technology; it's about cultivating a mindset and adopting responsible habits.

This manual serves as a guide to help us comply with the provisions of Republic Act No. 10173, also known as the Data Privacy Act of 2012 (DPA). Our experiences with cybersecurity incidents, though resolved, remind us of the importance of prevention, vigilance, and continuous learning. The digital landscape is constantly changing, and so must our awareness and practices.

By using this manual, we aim to strengthen our collective digital resilience. Let it guide us to be mindful, proactive, and responsible in all our online activities, because a secure digital environment begins with each one of us.

Let us lead by example. Cybersecurity is not just about knowledge, it's about action.

  
**JOY M. SORROSA, PhD**  
*College President*

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## MESSAGE OF THE VICE PRESIDENT FOR ADMINISTRATION AND FINANCE

The Data Privacy Manual represents a vital step forward in reinforcing our College's dedication to safeguarding individual privacy and ensuring that we handle personal information responsibly. In our academic community, where data plays a crucial role in learning, research, administration, and public service, it is essential for everyone involved to understand the importance of protecting personal data.

This Manual is not just a set of rules to comply with Republic Act No. 10173, also known as the Data Privacy Act of 2012; it is a framework designed to cultivate a culture of respect for privacy and ethical data management throughout our institution. It outlines the policies, principles, and procedures we must follow for the lawful collection, processing, and disposal of personal information. Additionally, it clarifies the roles and responsibilities of everyone involved in handling data. Moreover, this Manual introduces important strategies for dealing with data breaches, conducting privacy impact assessments, and addressing the challenges posed by new technologies and digital systems.

By adopting this Manual, we aim to promote transparency and accountability in the management of personal data, thereby reducing risks and vulnerabilities while enhancing public trust in our services and systems. We encourage each member of the DNSC community to take the time to read, understand, and abide by this Manual. It symbolizes our collective commitment to integrity, professionalism, and ethical governance. Together, let us work toward a culture where privacy is not just protected but highly respected.

*RCutad*  
**REIR ERLINDA E. CUTAD, DIT**  
*Vice-President for Admin and Finance*

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## ACKNOWLEDGEMENT

We extend our sincere gratitude to all individuals who contributed to the development of the Davao del Norte State College (DNSC) Data Privacy Manual.

This initiative represents the collective efforts, dedication, and commitment of a diverse group of individuals whose expertise was vital in shaping a comprehensive and practical guide to uphold data privacy and protection within our institution. Their insights have ensured that this manual is aligned with national standards and reflective of DNSC's core values.

We particularly acknowledge the contributions of the Office of Executive Affairs (DEA, Legal Services Unit), the Human Resource Management Office, the Records Management Office, and the Technology Support Services Unit, whose unwavering support was instrumental in the creation and refinement of this document. Their dedication helped ensure that the manual is not only legally sound but also practically relevant to our institutional context.

We extend our special appreciation to:

- Dr. Joy M. Sorrosa, College President
- Dr. Reir Erlinda E. Cutad, Vice-President for Administration and Finance
- Dr. Melissa G. Dalumay, Director for Executive Affairs
- Atty. Lorevill Pinoon-Fontanilla, Attorney IV
- Amalia M. Caballero, Records Officer III
- Raquel J. Edjec, HRMO III
- G.A. Benigno, TSSU Admin Aide VI

Our heartfelt thanks also go to the **College Management Team**, faculty, staff, and students who provided valuable feedback and recommendations throughout the drafting and review process. Your participation has significantly enriched the quality and applicability of the manual.

Moreover, we are grateful to all **DNSC stakeholders** for their steadfast support and engagement. Your commitment to transparency, accountability, and responsible data handling is crucial to fostering a culture of privacy and protection within the college. As we implement this Data Privacy Manual, we recognize it as a dynamic document that will continue to evolve in response to emerging standards, technologies, and institutional needs. Your continued collaboration and feedback will be essential in keeping it relevant and effective in safeguarding personal data.

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Thank you for your enduring commitment to the integrity and excellence of Davao del Norte State College.

## RATIONALE

Safeguarding personal information is now a crucial responsibility for all institutions that collect, process, and store data, especially educational institutions, which manage extensive amounts of sensitive personal information related to students, faculty, staff, alums, and other stakeholders.

In compliance with **Republic Act No. 10173**, also known as the **Data Privacy Act of 2012**, and the implementing rules and guidelines set forth by the **National Privacy Commission (NPC)**, the **Davao del Norte State College (DNSC)** is mandated to ensure that personal data is processed lawfully, fairly, and transparently. The law requires institutions to adopt reasonable and appropriate organizational, physical, and technical measures to safeguard personal information's confidentiality, integrity, and availability.

The Data Privacy Manual serves as the institutional blueprint for ensuring data privacy compliance within the college. It defines the internal policies, procedures, and security measures that govern personal data collection, use, retention, sharing, and disposal. More than a compliance document, it fosters a culture of privacy within the academic community, empowering all members to become proactive stewards of personal information.

This manual also establishes clear accountability by outlining the roles and responsibilities of the data protection officer (DPOs), data handlers, and other personnel involved in data processing. Furthermore, it ensures that the rights of data subjects are upheld, providing mechanisms for transparency, access, correction, and redress.

By adopting and implementing this Data Privacy Manual, the institution commits to:

- Upholding the constitutional right to privacy,
- Minimizing data-related risks,
- Strengthening public trust, and
- Promoting responsible data governance in higher education.

This document reinforces DNSC's unwavering commitment to upholding the rights and freedoms of every individual whose data is managed.

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## LEGAL BASIS

The development of the Data Privacy Manual is based on the following regulatory documents:

1. Republic Act No. 10173, the Data Privacy Act of 2012
2. NPC Circular 2023-06
3. NPC Circular 2023-02
4. NPC Advisory 2021-01
5. NPC Circular 2020-03
6. NPC Advisory 2017-01
7. NPC Circular 2016-03
8. NPC Circular 2016-01
9. NAP General Circular No. 2
10. NAP General Circular No. 1

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*“Inspiring Change, Creating Futures”*

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## Chapter 1 INTRODUCTION

This privacy manual is hereby adopted in accordance with the mission and vision of the College and compliance with Republic Act No. 10173, or the Data Privacy Act of 2012 (DPA), its implementing Rules and Regulations, and other relevant policies, including issuances of the National Privacy Commission (NPC). The College respects and values the data privacy rights of its employees, students, alums, stakeholders, and individuals who permit their personal information to be processed in its usual operations. It ensures that the general principles of transparency, legitimate purpose, proportionality, and legal necessity process these rights.

## Chapter 2 DEFINITION OF TERMS

This Manual adopts the definitions found in RA 10173 and its implementing rules and regulations. As used in this manual, the following are used under the context and definition below.

**2.1 Data Subject** - refers to an individual whose personal information is collected, stored, and processed.

**2.2 Personal Information (PI)**- refers to any information, whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual.

**2.3 Sensitive Personal Information (SPI)**- refers to personal information:

- about an individual's race, ethnic origin, marital status, age, color, and religious, philosophical, or political affiliations;
- about an individual's health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
- issued by government agencies peculiar to an individual, which includes, but is not limited to, social security numbers, health records, licenses or their denials, suspensions, or revocations, and tax returns; and
- specifically established by an executive order or an act of Congress to be kept classified.

**2.4 Personal data breach** - refers to a breach of security leading to the accidental or unlawful destruction, loss,

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alteration, unauthorized disclosure of, or access to, personal data transmitted, stored, or otherwise processed. A personal data breach may be like:

1. A confidentiality breach resulting from the unauthorized disclosure of or access to personal data. (NPC Circular 16-03, Rule 1, F.)
2. Integrity breach resulting from alteration of personal data; and/or
3. An availability breach resulting from loss, accidental or unlawful destruction of personal data.

**2.5 Personal Information Controller (PIC)** - refers to a person or organization who controls the collection, holding, processing, or use of personal information, including a person or organization who instructs another person or organization to collect, hold, process, use, transfer, or disclose personal information on his or her behalf.

**2.6 Personal Information Processor (PIP)** - refers to any natural or juridical person qualified to act as such under this Act to whom a personal information controller may outsource the processing of personal data pertaining to a data subject.

**2.7 Processing** - refers to any operation or any set of operations performed upon personal information or sensitive personal information, including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data.

**2.8 Privileged Information** - refers to any and all forms of data that constitute privileged communication under the Rules of Court and other pertinent laws.

**2.9 Security Incident** - an event or occurrence that affects or tends to affect data protection, or may compromise personal data's availability, integrity, and confidentiality. It shall include incidents that would result in a personal data breach, if not for safeguards put in place. (NPC Circular 16-03, Rule 1, J.)

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### Chapter 3 SCOPE AND LIMITATIONS

All employees of the College, including permanent faculty, part-time faculty, staff, contract of service employees, and those on job orders, must adhere to the terms outlined in this Privacy Manual.

This manual covers students to the extent that its provisions apply to them as students, student assistants, or members of student organizations under the supervision of any employee of the College. Additionally, it applies to individuals who transact publicly within the College. Furthermore, alumni, researchers engaged in research at the College, contract counterparties, suppliers, consultants, partners, and retirees are also covered under the provisions of this manual.

In instances where any processing of personal information is not covered by this Data Privacy manual, the Data Privacy Act of 2012 and its Implementing Rules and Regulations (IRR), and NPC issuances shall apply suppletorily.

### Chapter 4 DATA PRIVACY PRINCIPLES

The College and all its employees uphold the confidentiality and privacy of all personal data they encounter and acquire, even after resignation or termination of their contract. Personal data held by the College will only be shared for legitimate purposes and with authorized recipients.

The College will always uphold the principles of **Transparency, Legitimate Purpose, and Proportionality**. Thus, processing of personal information is permitted if it complies with the guidelines outlined in this manual and any applicable regulations allowing information to be disclosed to the public. It must also adhere to the principles of transparency, legitimacy, and proportionality:

- A. **Transparency:** Data subjects must understand the type, purpose, and extent of the processing of their data, as well as the associated risks and the protections in place. This includes identifying the Personal Information Controller, outlining the rights of data subjects, and explaining how these rights can be exercised. All communications related to the processing of personal data must be clear and easily understandable, using plain language.
- B. **Legitimate Purpose:** Information processing must serve a clearly defined objective that aligns with the law, ethical standards, and public policy.
- C. **Proportionality:** Information processing must be sufficient, relevant, appropriate, necessary, and reasonable, based on a well-defined and detailed objective.

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## Chapter 5 PROCESSING OF PERSONAL INFORMATION

During its operations, the College gathers personal details about its applicants, staff, personnel, consultants, students, alumni, suppliers, contractors, legal guardians, and visitors. The processing of personal information shall be done using the parameters stated below.

### 5.1 Notification and Consent

Any activity involving collecting and processing personal information must first inform the data subject about the purpose and scope of the data collection and processing. This notification is required before proceeding to the next step, which is obtaining the data subject's consent. Consent is required before personal information can be collected and processed, although some legal exceptions exist. The data subject can withdraw consent and may provide it explicitly or implicitly.

**5.1.1** Explicit consent is indicated through straightforward and conventional confirmation methods, such as physical forms validated by the data subject's signature.

**5.1.2** Implicit consent is granted when the data subject has been made aware of the nature and scope of data collection, but obtaining explicit consent is not practical or required. In such instances, consent is assumed if the data subject uses a particular computer system or service, recognizing the associated data collection.

### 5.2 Collection

**5.2.1** Personal Information of Enrollees, Students, and Alumni: The College may collect relevant personal, medical, and academic records of its enrollees and students and shall further collect and maintain them by their continued admission, re-admission, or enrollment. Additionally, the College may collect such relevant data from its alums as required by law or the College's everyday operations.

**5.2.2** Personal Information of Employees: The College may collect necessary and significant information from its employees as required by law and during their employment, including data relating to their qualifications, personal and medical background, reports and communications, or official documents as may be gathered during their engagement.

**5.2.3** Personal Information of Suppliers and Contractors: The College may collect pertinent data from persons entering into

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any transaction, relation, or agreement with or on its premises.

**5.2.4 Personal Information of Legal Guardians and Visitors:** The College may collect pertinent data from persons who may enter any transaction, relation, or agreement with or on any of its premises.

### 5.3 Use

The College will utilize the personal information it collects in the following manner:

#### 5.3.1 From Enrollees, Students and Alumni

- Verification process for taking the admission examination;
- Information dissemination by the College with respect to admissions and programs;
- Protection of the health and vital interests of the student through medical or health evaluation;
- Preparation processes for ceremonial activities such as orientation events of the various programs of the College;
- Determining the enrollment status of the student;
- Processing of grants or documents needed in partnership that the College will undertake;
- Setting up or processing needed in academic systems, such as but not limited to ... (Fill in the systems that the students or alums need to provide their personal data)
- Internal process improvement activities that may include the use of data analytics to process the personal data;
- Use in religious practices as supported and sanctioned by the College;

#### 5.3.2 From the Applicant, Staff, Personnel or Consultant

- Validation and identification of the applicant/staff, personnel, or consultant;
- Employment assessment and evaluation;
- Verification process such as background checks, credit checks, educational attainment verification;
- Lawful non-commercial information dissemination by the College with respect to its legitimate interest;
- Protection of the health and vital interests of the applicant, staff, personnel, or consultant;
- Processing of administrative tasks such as payroll processes, benefits processing, performance evaluations, administrative actions, and other administrative tasks;

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- Processing of grants or documents needed in partnerships that the College will undertake;
- Setting up the information system of the College;
- Internal processes improvement activities that may include the use of data analytics to process the personal data;
- Use in religious practices as supported and sanctioned by the College;
- Use in emergencies to protect the vital and medical interests of the applicant, staff, personnel, or consultant;

#### 5.3.3 From Suppliers and Contractors

- Validation and identification of the supplier or contractors;
- Evaluation of their capacity to contract;
- Verification process, such as but not limited to background checks;
- Lawful non-commercial information dissemination by the College with respect to its legitimate interest;
- Protection of the vital interests of the suppliers and contractors;
- Internal process improvement activities that may include the use of data analytics to process the personal data;
- Setting up or processing needed in the College's procurement system, such as PMS;

#### 5.3.4 From Legal Guardians

Use in emergencies to protect the vital and medical interests of the applicant/student.

#### 5.3.5 From Visitors

It is used as part of the College's security protocol to ensure the safety of the people within the campus and to assist in possible investigations of violations of the College's policies and any applicable laws and regulations. The personal data may also be used to generate statistical reports as input to improve processes and services offered by the College.

The College shall use any collected data for legitimate purposes only, as directly relevant to its operations, as may be restricted by law or pertinent regulations of the CHED, DEPED, DBM, CSC, COA, and the NPC.

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## 5.4 Storage, Retention, and Destruction

The College will protect personal data from accidental or unlawful destruction, alteration, and disclosure. Considering its nature, it will implement appropriate security measures for storing and destroying personal information. All information collected will not be retained for longer than necessary, except for permanent information, which will be retained indefinitely. As a minimum, the College may implement the following methods:

### 5.4.1 Storage

Personal information shall be stored securely using appropriate methods to ensure its protection. Hard copies of documents will be kept in designated folders and stored within secured filing cabinets, which shall be accessible only to authorized personnel. Electronic copies (e-copies) of documents shall be stored using secure cloud storage solutions and network storage systems with controlled access permissions. These storage systems shall be maintained with appropriate encryption and security protocols to safeguard data from unauthorized access, breaches, or loss.

### 5.4.2 Retention

The retention of personal information shall strictly adhere to the retention period stated in the College's approved Records Disposition Schedule (RDS). The retention periods for different categories of records will be defined in the RDS, ensuring compliance with legal, regulatory, and operational requirements. Records that have surpassed their designated retention period shall be reviewed and processed for disposal by the established guidelines.

### 5.4.3 Destruction

Processed personal information and sensitive personal information, whether in physical or electronic format, shall be destroyed in accordance with the policies and procedures of the National Archive of the Philippines (NAP). Hard copies of the processed personal information or sensitive personal information shall be disposed of through secure shredding or incineration to prevent unauthorized access. Electronic records shall be permanently deleted using secure data-wiping methods or digital shredding technologies to ensure they cannot be recovered. The College shall document all destruction processes to maintain accountability and compliance with data protection policies.

## 5.5 Access

The College's data subjects may request access to their personal information. Data subjects who are minors may also

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exercise this right through their authorized representatives or parents.

**5.5.1** Copies of the official academic record may only be accessed and requested officially through the Office of the Registrar. However, for fair evaluation and transparency, the same may be accessed through the following:

- The Faculty, for their students, as to the specific course handled only
- The Dean and Program Chairs of the Institute for academic evaluation and curriculum management.
- The Guidance Services is responsible for providing academic and personal development support.
- The Student Services and Development, for student disciplinary proceedings or official student-related matters.
- The Scholarship Office, for eligibility verification and monitoring academic performance.

**5.5.2** Copies of the employee records may only be accessed and requested officially through the Human Resource Management Office (HRMO).

## **5.6 Disclosure and Sharing**

### **5.6.1 Internal Data Sharing**

All College employees are required to maintain the confidentiality and integrity of personal information throughout their employment and beyond, even after the termination of their contract, resignation, or completion of any other form of engagement.

The internal sharing of personal data between offices, units, or divisions is permitted only for legitimate, defined purposes and must adhere to the principles of transparency, proportionality, and legitimate purpose. All requests for access to personal data must be documented and authorized, ensuring that:

- Access is granted only to personnel with a direct and official need.
- Internal data transfers are subject to approval by the unit head and oversight by the Data Protection Officer (DPO).
- Internal sharing is logged and monitored to prevent misuse or unnecessary access.

Employees who handle sensitive personal information must sign a Non-Disclosure Agreement (NDA) to affirm their duty to protect such data and uphold strict confidentiality.

### **5.6.2 External Data Sharing**

Personal information in the College's custody shall only be disclosed to external parties when required by law or

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for lawful purposes, and only to authorized recipients. Disclosure to external entities—including but not limited to the DBM, CHED, DepEd, TESDA, DEPDev, COA, DSWD, PRC, and other relevant government agencies—must comply with applicable data privacy laws and regulations.

Before any external data sharing occurs:

- o A Data Sharing Agreement (DSA) must be executed to clearly define the data exchange's scope, purpose, responsibilities, and security measures.
- o The DPO must evaluate and approve the agreement to ensure compliance with the Data Privacy Act of 2012 and relevant guidelines issued by the National Privacy Commission (NPC).
- o Only the minimum necessary data required to fulfill the lawful purpose should be shared.
- o All external disclosures must be appropriately documented and available for review or audit when required.

## 5.7 Exceptions

The Data Privacy Act of 2012 (DPA) establishes the right to data privacy. However, there are specific circumstances in which the processing of personal information may occur without prior consent from the data subject. Key exemptions include:

### 5.7.1 Compliance with Legal Obligations

Processing is allowed when it is necessary to comply with legal or regulatory requirements, such as law enforcement, national security, taxation, or other statutory mandates.

### 5.7.2 Protection of Vital Interests

Personal data may be processed without consent if it is necessary to protect the life, health, or safety of the data subject or another person, particularly in emergencies.

### 5.7.3 Fulfillment of Contractual Obligations

When processing is necessary for the performance of a contract with the data subject or to take pre-contractual steps at the data subject's request, consent may not be required.

### 5.7.4 Public Interest and Government Functions

Processing carried out in the exercise of official authority or the public interest—such as public health, national security, or public order—is exempt from the usual DPA requirements, including:

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- Names
- Official titles and positions
- Public statements
- Compensation as reported in SALNs (Statements of Assets, Liabilities, and Net Worth)

#### **5.7.5 Journalistic, Artistic, Literary, or Research Purposes**

Processing of personal data for journalistic, artistic, literary, or scientific research is exempt, provided it is done for public benefit and adheres to appropriate ethical standards and safeguards.

#### **5.7.6 Law Enforcement and Public Safety**

Information processed for purposes related to the investigation, prevention, detection, or prosecution of criminal offenses or in response to a threat is exempt when conducted by duly authorized government authorities.

#### **5.7.7 Government Officials and Employees in Official Capacity**

Personal data of government officers and employees that pertain to their official functions and duties are not considered private and are therefore exempt from the Data Protection Act (DPA) restrictions.

#### **5.7.8 Compliance with Financial and Regulatory Requirements**

Processing necessary for compliance with anti-money laundering laws, tax regulations, and other financial oversight measures is permitted under the law.

#### **5.7.9 Public Domain Information**

Personal data that is publicly available or has been lawfully made available to the public by the data subject or through public records is not subject to the restrictions of the DPA.

## **Chapter 6 SECURITY MEASURES**

### **6.1 Organizational Security Measures**

**6.1.1 Data Protection Officer (DPO).** The College shall appoint a qualified DPO in compliance with the requirements of RA 10173.

#### **6.1.2 Functions of the DPO**

The DPO shall have the following functions:

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Monitor the College's compliance with the DPA, its IRR issuances by the NPC, and other applicable laws and policies; as such, the DPO may:

- a. collect information to identify the processing operations, activities, measures, projects, programs, or systems of the College and maintain a record thereof;
- b. analyze and check the compliance of processing activities, including the issuance of security clearances to and compliance by third-party service providers;
- c. inform, advise, and issue recommendations to the College;
- d. advise the College as regards the necessity of executing a Data Sharing Agreement with third parties and ensuring its compliance with the law;
- e. ensure the conduct of Privacy Impact Assessments relative to activities, measures, projects, programs, or systems of the College;
- f. advise the College regarding complaints and/or the exercise by data subjects of their rights (e.g., requests for information, clarifications, rectification, or deletion of personal data);
- g. ensure proper data breach and security incident management by the College, including the latter's preparation and submission to the NPC of reports and other documentation concerning security incidents of data breaches within the prescribed period;
- h. inform and cultivate awareness of privacy and data protection within the organization, including all relevant laws, rules, regulations, and issuances of the NPC;
- i. advocate for the development, review, and/or revision of policies, guidelines, projects, and/or programs of the College relating to privacy and data protection by adopting a privacy-by-design approach;
- j. serve as the contact person of the College vis-à-vis data subjects, the NPC, and other authorities in all matters concerning data privacy or security issues of concern to the College;
- k. cooperate, coordinate, and seek advice from the NPC regarding matters concerning data privacy and security; and
- l. perform other duties and tasks that the College may assign that will further the interest of data privacy and security and uphold the rights of the data subjects.

#### 6.1.3 Other Designated Roles and Responsibilities

- **Compliance Officer for Privacy (COP).** Supports the DPO in overseeing compliance at the departmental or unit level.

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- o Ensure implementation of privacy policies in their respective units.
- o Report privacy issues or incidents to the DPO.
- o Assist in conducting internal audits and assessments.
- **Systems Administrator.** Ensure the confidentiality, integrity, and availability of personal data stored or processed electronically.
  - o Implement technical safeguards such as access control, encryption, and system monitoring.
  - o Coordinate with the DPO on data breach prevention and response.
  - o Conduct regular security audits and vulnerability assessments.

### 6.1.3 Conduct of trainings or seminars

The College shall conduct mandatory data privacy and security training at least once per year. Incident response drills and security awareness training shall be conducted periodically to ensure preparedness against cyber threats. For Personnel directly involved in processing personal information, management shall ensure their attendance and participation in relevant training and orientations as often as necessary. Incident response drills and security awareness training shall be conducted periodically to ensure preparedness against cyber threats.

### 6.1.4 Privacy Impact Assessment (PIA)

The College shall conduct a Privacy Impact Assessment (PIA) at least once per year for all activities, projects, and systems involving the processing of personal data. The PIA shall encompass understanding the personal data flow, identifying and assessing potential threats and vulnerabilities, and proposing appropriate measures to mitigate privacy risks.

### 6.1.5 Recording and documentation of activities carried out by the College to ensure compliance with RA 10173, its IRR and other relevant policies.

The College shall maintain comprehensive records and documentation of all activities, projects, or endeavors undertaken to ensure strict compliance with the provisions of the Data Privacy Act, its Implementing Rules and Regulations (IRR), and the directives issued by the National Privacy Commission (NPC). The data collected shall be utilized for the preparation and submission of reports mandated by law and for the assessment and enhancement of the institution's privacy measures.

### 6.1.6 Review of Privacy Manual

This Manual shall be reviewed and evaluated annually. The College's privacy and security policies and practices shall be updated to remain consistent with current data privacy best practices.

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### 6.1.7 Data Breach Response Team

The College shall establish a Data Breach Response Team, with members who with clearly defined responsibilities, to ensure timely action in case of a security incident or personal data breach. The team shall be tasked to perform the following:

- Implement the data breach management policy of the College;
- Management of security incidents and personal data breaches;
- Assess and evaluate security incidents;
- Restore the integrity of the information and communication system in case of a data breach incident; and
- Mitigate and remedy any resulting damage;
- Report data breaches in accordance with the established protocol.

### 6.1.8 Data Breach Protocol

The College shall follow the data breach protocol established in Chapter 7 of this Data Privacy Manual. The protocol shall be reviewed annually, as initiated and proposed by the DPO.

### 6.1.9 Retention and disposal procedure

The College will retain personal data only when necessary, following the College's approved Records Disposition Schedule. It will dispose of all physical and electronic copies using secure technology. Permanent files must be protected with appropriate security measures.

## 6.2 Physical Security Measures

### 6.2.1 Format of data to be collected

Personal data in the organization's custody may be in digital/electronic or paper-based/physical format.

### 6.2.2 Storage type and location

All paper-based personal information processed by the College shall be stored in secured filing cabinets, while the digital/electronic files are stored in the storage and processing system.

### 6.2.3 Monitoring and limitation of access to storage facility

All authorized personnel must document their access to stored personal information in a manner that enables monitoring. This record should include the individual's name, date, time, duration, and purpose of access.

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#### 6.2.4 Design of office space/workstation

The computers are positioned with considerable spaces between them to maintain privacy and protect the processing of personal data. Workstations must be off-limits to outsiders, and computer monitors near windows must not be accessible to outsiders' line of sight.

#### 6.2.5 Physical data sharing and transport security.

All physical data transfers must be appropriately authorized and documented. Each transfer must receive written approval from the head of the concerned unit, and a transport log must be maintained that indicates the date and time of dispatch, the origin and destination, a description of the data or materials transferred, and the identities and signatures of both the sender and receiver. Physical records must be placed in sealed envelopes or containers, while storage devices (e.g., USB drives or hard drives) must be encrypted when applicable.

Only authorized personnel are permitted to handle internal transfers on campus. For off-campus transfers, the data must be transported by designated College personnel with official authorization or through trusted courier services with prior clearance from the Data Protection Officer (DPO).

### 6.3 Technical Security Measures

#### 6.3.1 Monitoring for security breaches

The College shall use intrusion detection systems (IDS) and security information and event management (SIEM) tools to monitor security breaches and alert the organization of any attempt to interrupt or disturb the system.

#### 6.3.2 Security features of the software/s and application/s used

- The College shall first review and evaluate software applications before installing them on the organization's computers and devices to ensure the compatibility of security features with overall operations.
- Only secured or licensed software may be used by the College to prevent breaches caused by malware.
- Regular software updates and patches shall be applied to mitigate security vulnerabilities and enhance system protection.

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### **6.3.3 Process for regularly testing, assessment and evaluation of effectiveness of security measures**

The College shall review security policies, conduct vulnerability assessments, and perform penetration testing on a regular schedule prescribed by the appropriate department or unit. Incident response drills and security awareness training shall be conducted periodically to ensure preparedness against cyber threats.

### **6.3.4 Encryption, authentication process, and other technical security measures that control and limit access to personal data**

- a. The College shall require passwords to access personal information in its system. Multi-factor authentication (MFA) shall be implemented to strengthen user authentication and prevent unauthorized access.
- b. To protect against data breaches, all sensitive data shall be encrypted both in transit and at rest using industry-standard encryption protocols.

## **6.4 Internal Data Privacy Audit**

Periodic internal data privacy audits will be conducted to evaluate compliance with the Data Privacy Act of 2012, its Implementing Rules and Regulations, and all related internal policies and procedures. These audits will be performed at least once a year, or as deemed necessary by the Data Protection Officer (DPO). The audit will review data processing operations, access controls, data sharing practices, breach response readiness, and the effectiveness of implemented security measures.

The audit results will be formally documented and submitted to the College President and other relevant officials. Any non-compliance or identified gaps will be promptly addressed through corrective action plans with defined timelines and assigned responsibilities. The outcomes of these audits will also inform updates to policies, systems, and training programs, ensuring the College maintains a high standard of data protection and privacy management.

## **Chapter 7 BREACH AND SECURITY INCIDENTS**

### **7.1 Data Breach Response Team**

All college offices and employees shall cooperate with the Data Breach Response Team (DBRT), which is responsible for ensuring immediate action in the event of a security incident or personal data breach. The team shall conduct an initial assessment of the incident or breach to ascertain its nature

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and extent. It shall also execute measures to mitigate the adverse effects of the incident or breach.

#### 7.1.1 The DBRT shall be composed of the following:

##### Chairperson:

- A Vice President of the College

##### Vice-Chairperson:

- The Data Protection Officer (DPO)

##### Members:

- The Compliance Officer for Privacy (COP) from both the regular and extension campuses
- The Head of the Legal Services Unit
- A faculty member from the Institute of Computing with expertise in Networking and Cybersecurity
- A representative from the Technology Support Services Unit (TSSU)
- A representative from the Human Resource Management Office (HRMO)
- A representative from the Records Office
- A representative from the Administrative Services Division
- A representative from the Finance Services Division

#### 7.2 Procedure for recovery and restoration of personal data

The College, through the TSSU, shall maintain a backup file for all personal data under its custody. In the event of a security incident or data breach, the backup must be compared with the affected file to determine the presence of any inconsistencies or alterations resulting from the incident or breach.

#### 7.3 Notification protocol

In case of a data breach, the head of each unit that has access to personal information or any other office with knowledge of such incident shall coordinate with the DBRT, who shall, in turn, inform the College President of the need to notify the NPC and the affected data subjects within the period prescribed by law.

No notification may be made unless approved by the DPO.

#### 7.4 Documentation and reporting procedure of security incidents or a personal data breach.

In case of a data breach, the head of each unit that has access to personal information or any other office with knowledge of such incident shall assist the DBRT, which shall prepare detailed documentation of every incident or breach encountered and an annual report to be submitted to management and the NPC within the prescribed period.

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## **Chapter 8**

### **PRIVACY IN EMERGING TECHNOLOGIES**

In anticipation of integrating emerging technologies such as artificial intelligence (AI), machine learning, biometric identification systems, intelligent surveillance, and other data-driven innovations, the College recognizes these tools' potential risks to data privacy and individual rights. Any implementation of such technologies that involves processing personal or sensitive personal information shall undergo a thorough Privacy Impact Assessment (PIA) before adoption. This includes, but is not limited to, technologies used for automated decision-making, facial recognition, behavioral analytics, or biometric authentication.

These technologies must comply with transparency, legitimate purpose, and proportionality principles outlined in the Data Privacy Act of 2012.

## **Chapter 9**

### **REQUESTS FOR RECTIFICATIONS AND COMPLAINTS**

Data subjects can ask for information, rectification, or clarification on any concern about how the College processes their personal information, including the security measures put in place to guarantee the safety of their data.

The data subject may submit a written request to the College, addressed to the Data Protection Officer, seeking information, rectification, deletion, or clarification regarding their data. Such a request should outline the nature of the inquiry and include the contact details to facilitate future correspondence. All requests, complaints, and inquiries must be directed to the DPO's official email at [dpo@dnsc.edu.ph](mailto:dpo@dnsc.edu.ph). Alternatively, the data subject may send three (3) hard copies of the request to the DPO. The DPO shall confirm the receipt of the request.

## **Chapter 10**

### **REPEALING CLAUSE**

If any provisions of this Manual conflict with any College issuance, memorandum, rule, regulation, or part of any of these, they are hereby repealed, changed, or amended as needed.

## **Chapter 11**

### **EFFECTIVITY**

The provisions of this Manual are effective immediately after its approval by the Board of Trustees.

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## ANNEXES

### Annex A

#### Privacy Statement

Davao del Norte State College (DNSC) is committed to upholding the **right to privacy** and protecting personal data by **the Republic Act No. 10173** or the **Data Privacy Act of 2012 (DPA)**, its Implementing Rules and Regulations (IRR), and the policies set by the **National Privacy Commission (NPC)**.

This **Privacy Statement** outlines DNSC’s general data collection and processing procedures. It is a foundation for all other privacy statements the College issues for specific offices, functions, or processes. In cases where more detailed information is required, a separate **Privacy Notice** or **Data Privacy Statement** will be provided for the relevant office, activity, or process.

For a comprehensive guide on the College’s privacy policies and procedures, please refer to the **DNSC Data Privacy Manual**.

#### 1. Collection and Processing of Personal Data

DNSC collects and processes only the **necessary** and **relevant** personal data for its academic, administrative, and operational functions. Given the diverse nature of its stakeholders, the type and extent of personal data collected may vary depending on the **specific purpose** for which it is needed.

#### Types of Personal Data Collected

The College may collect the following categories of personal data:

- **Basic Information:** Name, nationality, date of birth, home address, phone number, email address
- **Academic Information:** Educational background, student records, grades, course enrollments
- **Employment Information:** Job position, work history, salary details, performance evaluations
- **Financial Information:** Tuition payments, financial aid records, scholarships, bank details
- **Government-issued Identifications:** SSS, PhilHealth, TIN, Passport, PRC, or other IDs
- **Security and Digital Information:** CCTV recordings, biometric data, IP addresses, cookies, system logs
- **Research-related Data:** Sensitive personal information, such as political views, health records, and ethnic background, as needed for approved research studies
- **Health Information:** Medical records, health declarations, vaccination status, and other relevant health-related data

All personal data is collected **with the express or implied consent** of the data subject unless otherwise permitted or required by law.

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## 2. Purpose of Data Collection and Processing

DNSC collects and processes personal data strictly for **legitimate purposes** that align with its mandate and legal obligations. These purposes include, but are not limited to:

- Verifying the identity of students, employees, and visitors
- Managing student admissions, enrollment, and academic records
- Administering faculty and staff employment records
- Generating statistical data for institutional planning and reporting
- Enhancing campus security through CCTV monitoring
- Conducting research and academic studies
- Complying with government regulations and reporting requirements
- Establishing, exercising, or defending legal claims
- Protection of the health and vital interests of the applicant, staff, personnel, or consultant

## 3. Data Sharing and Disclosure

DNSC upholds the **principles of transparency, proportionality, and legitimate purpose** when handling personal information. The College does **not** disclose or share personal data with third parties **without the prior consent of the data subject**, except in the following cases:

- **Compliance with Legal and Regulatory Obligations:** The College may disclose personal information to authorized government agencies such as **CHED, DepEd, TESDA, DBM, DSWD, PRC**, and other regulatory bodies.
- **Academic and Institutional Partnerships:** DNSC may share personal data with partner institutions, research collaborators, or accrediting organizations when necessary, and by a **Data Sharing Agreement (DSA)**.
- **Internal Data Sharing:** Any sharing of personal information between the College units shall only be done upon a written request to the College President, ensuring proper authorization and compliance with the College's data privacy policies.

## 4. Data Protection and Security Measures

To protect personal information, DNSC implements **strict security measures**, including:

- **Organizational Controls:** Designated **Data Protection Officer (DPO)** oversees compliance with data privacy regulations.
- **Physical Security Measures:** Restricted office access, secured storage areas, and surveillance monitoring.
- **Technological Safeguards:** Encryption, firewalls, anti-malware systems, and secured databases.
- **Administrative Controls:** Continuous staff training, confidentiality agreements, and periodic privacy audits.

Access to personal information is **strictly limited** to authorized personnel with a legitimate need to handle such data.

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## 5. Data Retention and Disposal

DNSC retains personal data **only for as long as necessary** to fulfill its stated purpose or comply with applicable laws and regulations. When personal data is no longer needed, the College ensures its **secure disposal** through methods such as **shredding of physical records and permanent deletion from digital storage**.

## 6. Rights of Data Subjects

As mandated by the **Data Privacy Act of 2012**, individuals whose personal data is collected and processed by DNSC have the following rights:

- **Right to Be Informed**
- **Right to Access**
- **Right to Object**
- **Right to Rectification**
- **Right to Erasure**
- **Right to Data Portability**
- **Right to File a Complaint**

## 7. Contact Information

For inquiries, concerns, or requests regarding data privacy, you may contact the **DNSC Data Protection Officer (DPO)**:

**Email:** [dpo@dnsc.edu.ph](mailto:dpo@dnsc.edu.ph)

**Office Address:** 2nd Floor, IC Building, Davao del Norte State College, New Visayas, Panabo City

This Privacy Statement may be updated periodically to reflect changes in data privacy policies and regulatory requirements.

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Annex B

Data Privacy Consent

In accordance with RA 10173 or the Data Privacy Act of 2012, I consent to the following terms and conditions on the collection, use, processing, and disclosure of my personal data. I know that the Davao del Norte State College has collected and stored my personal data upon completing this form.

These personal data may include:

- **Basic Information:** Name, nationality, date of birth, home address, phone number, email address
- **Academic Information:** Educational background, student records, grades, course enrollments
- **Employment Information:** Job position, work history, salary details, performance evaluations
- **Financial Information:** Tuition payments, financial aid records, scholarships, and bank details
- **Government-issued Identifications:** SSS, PhilHealth, TIN, Passport, PRC, or other valid government IDs
- **Research-related Data:** Sensitive personal information such as political views, health records, ethnic background, and other necessary data for approved research studies
- **Health Information:** Medical records, health declarations, vaccination status, and other relevant health-related data

I consent to the Davao del Norte State College collecting and storing my personal information. I hereby affirm my right to be informed, object to processing, access, and rectification, and to suspend or withdraw my personal data pursuant to the provisions of RA 10173 and its implementing rules and regulations. By affixing my signature, I warrant that I have read and understood the above provisions and agree to their full implementation.

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Annex C

Privacy Impact Assessment

Name of process/program/activity/initiative/system:

Office/Division/Unit:

I. SCREENING

A. NEW PROGRAM/PROJECT/INITIATIVE

A.1 Will the new program/project/initiative collect, store, share, use, or process personal data in any identifiable form?

- ☐ Yes
- ☐ No
- ☐ I don't know (Please schedule a consultation with the Data Protection Officer)

A.2 If the response to the question is YES (or changes are being/to be implemented to an existing program/project/initiative), complete the table below. If NO, proceed to Part IV.

| Types of Personal Data to be Collected, Stored, Shared, Used, or Processed |         |                                                                            |         |
|----------------------------------------------------------------------------|---------|----------------------------------------------------------------------------|---------|
| Personal Information                                                       | Y/<br>N | Sensitive Personal Information                                             | Y/<br>N |
| 1. Name                                                                    |         | 12. Age (with Birth Year)                                                  |         |
| 2. Home Address                                                            |         | 13. Marital Status                                                         |         |
| 3. Business Address                                                        |         | 14. Color, Race or Ethnic Origin (Including Citizenship or Place of Birth) |         |
| 4. Email Address                                                           |         | 15. Religion (Religious beliefs or affiliations)                           |         |
| 5. Telephone Number - Work                                                 |         | 16. Education                                                              |         |
| 6. Telephone Number - Home                                                 |         | 17. Biometrics                                                             |         |
| 7. Mobile Phone Number                                                     |         | 18. Political Association                                                  |         |

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|                                                            |  |                                                                                               |  |
|------------------------------------------------------------|--|-----------------------------------------------------------------------------------------------|--|
| 8. Employment History                                      |  | 19. Philosophical Beliefs/Orientation                                                         |  |
| 9. Employment Compensation and Benefits                    |  | 20. Health-related Information                                                                |  |
| 10. Closed-Circuit Television (“CCTV”) Surveillance Videos |  | 21. Sexual life/preference/practice                                                           |  |
| 11. Photos                                                 |  | 22. Any records of Civil, Criminal, or Administrative Proceedings                             |  |
|                                                            |  | 23. Government-issued identifiers (licenses, passport, etc.) established by law as classified |  |

A.3 Will the new program/project/initiative change an existing process/system/program/project, and how will the Personal Data be processed?

☐ Yes, Describe Changes (Note: Please use an additional sheet if necessary.)

- ☐ No
- ☐ I don’t know (Please schedule a consultation with the Data Protection Officer)

B. EXISTING PROGRAM/PROJECT/INITIATIVE

B.1 Has a Privacy Impact Assessment been performed for this existing program/project/initiative?

☐ Yes

☐ No

☐ I don’t know (Please schedule a consultation with the Data Protection Officer)







B.2 Will the process owner use the Personal Data for a new purpose other than for the purpose they are currently being used?

- ☐ Yes
- ☐ No
- ☐ I don't know (Please schedule a consultation with the Data Protection Officer)

B.2 Is there an existing Data Sharing Agreement and/or Data Processing Agreement with the other organizations given access to and/or allowed to process the Personal Data?

- ☐ Yes (Please identify: \_\_\_\_\_)
- ☐ No
- ☐ Not Applicable (Please state reason: \_\_\_\_\_)

B.3 Will the Personal Data about individuals be disclosed to organizations or people who have not previously been given access to the information?

- ☐ Yes
- ☐ No
- ☐ I don't know (Please schedule a consultation with the Data Protection Officer)

## II. PROCESSING AND DATA LIFE CYCLE DETAILS

**A. Source of Personal Data:** From whom are we collecting the Personal Data?

- ☐ Directly from the data subjects (*i.e., natural persons who own the Personal Data*)
- ☐ Another individual (*Relationship with the data subject:* \_\_\_\_\_) ☐ Another entity (*i.e., a corporation/organization which is a personal information controller*)
- ☐ Another Business Unit

**A.1 Method of Collection:** How are we collecting/obtaining the Personal Data (*e.g., via interviews, online portal, email*)? Provide a brief description

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**B. Capacity by which Personal Data is Processed:** Are we processing the Personal Data for the College's independent purposes or on behalf of an external/third party, including subsidiaries and/or affiliates?

- ☐ For the College's independent purposes (as *Personal Information Controller [PIC]*)
- ☐ On behalf of an external/third party (as *Personal Information Processor [PIP]*)
- ☐ Both as PIC and PIP

**C. Purpose/s of Processing Personal Data:**

(Note: If your answer to Question 3 above is "Both as PIC and PIP", please identify which purposes pertain to external/third parties.)

(Note: Please use an additional sheet, if necessary.)

**D. Are data subjects made or will they be made aware of the above mentioned purposes?**

- ☐ Yes Describe How:
- ☐ No
- ☐ Not Applicable

E.g., Through Privacy Notice/Consent

**E. Basis for Collecting/Processing Personal Data:**

**E.1 [If based on Consent] Method of Obtaining Consent:**

How are we obtaining the consent for the collection and processing, including whether the consent is or will be obtained through an external/third party or another Division/Unit of DNSC? Describe briefly.

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**E.2 If there are multiple items** being offered to the data subjects, will/do they have the option to accept one and decline the others without being entirely denied of coverage?

☐ Yes

☐ No

☐ Not Applicable

**E.3 [If based on other lawful grounds]:**

Identify the basis for lawful processing of Personal Data specifically relied upon. Check as many as applicable.

☐ To fulfill a contract with the data subject or necessary prior to entering a contract

☐ To comply with the legal obligations of DNSC (Please describe: \_\_\_\_\_)

☐ To protect vitally important interests of the data subject, including life and health

☐ To provide medical treatment carried out by a medical practitioner or institution

☐ To respond to national emergency, requirements of public order/safety, or a public authority

☐ To pursue other legitimate interests of DNSC

☐ To protect lawful rights, including the establishment, exercise or defense of legal claims

☐ Others: \_\_\_\_\_

☐ I don't know (Please schedule a consultation with the Data Protection Officer.)

**E.4 Method of Storing the Personal Data:**

Describe briefly how the Personal Data will be stored, including where, media used (physical and electronic files) and if outsourced and possible secondary repositories, e.g., laptops, desktops, personal cabinets, etc.

**E.5 Is the Personal Data transferred outside of the Philippines? Describe briefly.**

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E.6 Personnel Involved /Internal Disclosures: Identify other Units/Departments to which the Personal Data are/will be disclosed and/or part of the processing activity (even those involved for storage purposes only) .

| Unit/Department | Purpose of Access/Involvement |
|-----------------|-------------------------------|
|                 |                               |
|                 |                               |
|                 |                               |
|                 |                               |
|                 |                               |

E.7 External Disclosures:

(a)Identify external parties to which the Personal Data are/will be disclosed and/or part of the processing activity.

| External Party | Mode/Method of Disclosure/Transfer <sup>8</sup> |
|----------------|-------------------------------------------------|
|                |                                                 |
|                |                                                 |
|                |                                                 |

(b) Are those external parties covered by any contract or instrument describing their obligations in protecting such data?

- ☐ Yes
- ☐ No
- ☐ Not Applicable

E.8 Data Life Cycle: Briefly describe the following:

|                    |  |
|--------------------|--|
| Time of Collection |  |
|--------------------|--|

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|                                                |  |
|------------------------------------------------|--|
| Retention Period                               |  |
| Disposal/Destruction/Deletion/Method/Procedure |  |

**E.9 Automated Decision-making:** Does the program/project/initiative adopt automated processing operations (applicable even where the collection is done manually)?

- ☐ Yes
- ☐ No
- ☐ I don't know (Please schedule a consultation with the Data Privacy Office).

III. IMPACT ASSESSMENT – IDENTIFIED RISKS AND AGREED PLAN OF ACTION

| Issue | Risk | Likelihood | Severity | Risk Factor | Action Plan (Y/N) | Action Plan | Timeline |
|-------|------|------------|----------|-------------|-------------------|-------------|----------|
|       |      |            |          |             |                   |             |          |
|       |      |            |          |             |                   |             |          |

Other Recommendations

IV. SIGN-OFF

We/I hereby acknowledge the truthfulness, accuracy, and completeness of the foregoing responses, and **we/I undertake to immediately notify the Data Privacy Office of any change or**

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modification thereto that would have an impact on the processing of Personal Data.

|              |              |
|--------------|--------------|
| NAME         | NAME         |
| Designation: | Designation: |
| Date Signed: | Date Signed: |

RECEIVED:

Data Protection Officer  
Date Signed:

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Annex D

Editor's Certificate



Institute of Teacher Education

CERTIFICATE

This certifies that the document titled “**Data Privacy Manual**” has undergone rigorous scrutiny and examination by the undersigned, ensuring meticulous attention to detail and adherence to grammatical standards.

Issued on the **2<sup>nd</sup>** day of **July 2025** at Davao del Norte State College, New Visayas, Panabo City, Davao del Norte

  
**JOHN RAE V. DURAN**  
Assistant Professor

|                                                                                                              |                                                                                                                                                                                            |                                                                                                                             |                                                                                                                                                                             |
|--------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
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|--------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                                                                                             |                                                                                                                                                                                             |                                                                                                                             |                                                                                                                                                                             |
|---------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
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|---------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|



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Annex E

GAD Scoring Evaluation



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Gender and Development Office

### CERTIFICATE OF EVALUATION

This certifies that

The proposed **Data Privacy Manual** has undergone a GAD Scoring evaluation. Its score of 8.0 indicates that the proposal is gender-sensitive.

Given this 4<sup>th</sup> of April 2025.

SADIE D. LAW-AY  
DNSC GAD FPS

|                                                                                                                     |                                                                                                                                                                                                                               |                                                                                                           |                                                                                                                                                                             |
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## Annex F

### Certificate of Legal Review



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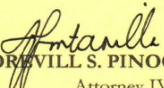
|                 |                 |
|-----------------|-----------------|
| Form No.        | FM-DNSC-ICLR-02 |
| Issue Status:   | 01              |
| Revision No.    | 00              |
| Effective Date: | 27 January 2025 |
| Approved by:    | President       |

### Legal Service Unit

**CERTIFICATE OF LEGAL REVIEW No. 057**  
Series of 2025

This is to certify that, upon conducting a legal review of the proposed **Data Privacy Manual** and verifying its compliance with the **Report of Findings No. 52, Series of 2025**, this Office found the abovementioned proposed manual to be **in order**.

This Certification is issued as a documentary requirement of the Board of Trustees (BOT), given this 28<sup>th</sup> day of May 2025.



**ATTY. LOREVILL S. PINOON-FONTANILLA**  
Attorney IV  
Head, Legal Service Unit

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## Annex G

### Certificate of Availability and Source of Funds



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### Office of the Director for Finance Services Division

#### CERTIFICATE OF AVAILABILITY AND SOURCE OF FUNDS

This is to certify that funds are available for the **printing of Privacy Manual** of Davao del Norte State College, chargeable against the Regular Agency Fund (FY 2025 GAA).

This certification is issued upon request for any legal purpose or intent it may serve.  
Done this 3<sup>rd</sup> Day of April 2025 at Panabo City.

  
**MARCK LESTER L. NAVALES**  
Accountant III / Finance Director

|                                                                                                                     |                                                                                                                                                                                                                               |                                                                                                           |
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Annex H

Activity Design - Stakeholders Consultation



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*Technology Support Services Unit*

**ACTIVITY DESIGN**

**Title:** Stakeholders Consultation for the Proposed Data Privacy Manual of DNSC  
**Participants:** Faculty, Staff, Students, Alumni, Partner Organizations  
**Venue:** Virtual Platform – MS Teams  
**Collaborators:** Office of the Director for Executive Affairs  
**Date:** June 9, 2025

**Rationale**

Davao del Norte State College (DNSC) acknowledges the right to privacy as guaranteed by law. It affirms its unwavering commitment to safeguarding the personal data of its employees, students, alumni, partners, and other stakeholders. As an academic institution entrusted with sensitive personal information across its academic, research, administrative, and operational functions, DNSC recognizes the critical importance of integrating data protection into the core of its governance and daily operations.

In pursuit of this commitment, the College is developing a comprehensive Data Privacy Manual to institutionalize clear policies, procedures, and accountability mechanisms. This proposed manual is envisioned to serve as a foundational document that promotes a culture of privacy and data stewardship within the institution. It will ensure that the collection, processing, storage, sharing, and disposal of personal data are carried out in a manner that is lawful, fair, transparent, secure, and aligned with the principles of transparency, legitimate purpose, and proportionality.

To uphold these values and foster a sense of shared responsibility, DNSC aims to conduct a stakeholder consultation as an integral part of the manual's development. Engaging stakeholders—including students, faculty, staff, alumni, and partner organizations—will help ensure that the manual is responsive to the diverse realities and concerns of the College community. This inclusive process not only enhances the manual's relevance and effectiveness but also strengthens institutional accountability and trust.

**Objectives**

Through this consultation, DNSC aims to:

1. Collect feedback and insights to refine and contextualize the proposed manual.
2. Enhance transparency in the College's data governance efforts.
3. Foster collaboration in establishing a privacy-respectful academic environment.

| TIME              | ACTIVITY                        | PERSONS INVOLVE                         |
|-------------------|---------------------------------|-----------------------------------------|
| 1:00 PM – 1:10 PM | Opening Prayer, National Anthem | AVP                                     |
| 1:10 PM – 1:20 PM | Opening Remarks                 | Dr. Joy M. Sorrosa<br>College President |

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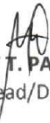
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### Technology Support Services Unit

|                   |                                                        |                                                   |
|-------------------|--------------------------------------------------------|---------------------------------------------------|
| 1:20 PM– 2:20 PM  | Presentation of the<br>Proposed Data Privacy<br>Manual | Ian Jay T. Padios<br>Data Protection Officer      |
| 2:20 PM – 2:50 PM | Open Forum                                             | Emcee                                             |
| 2:50 PM – 3:00 PM | Closing Remarks                                        | Reir Erlinda E. Cutad<br>VP for Admin and Finance |

Prepared by:

  
**IAN JAY T. PADIOS**  
TSSU Head/Data Protection Officer

Noted by:

  
**MELISSA G. DALUMAY**  
Director, Executive Affairs

  
**REIR ERLINDA E. CUTAD**  
Vice President for Admin and Finance

Funds Available: **NA**

  
**MARCK LESTER L. NAVALES**  
Accountant III

Approved:

  
**JOY M. SORROSA**  
College President

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## Annex I

### Stakeholder’s Consultation Action Plan



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### Technology Support Services Unit

#### Stakeholder's Consultation for the Proposed Data Privacy Manual of DNSC

#### ACTION PLAN

| Feedback                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Action Plan                                                                                                                                                                                                      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>Revision or reviewing of the collection of the information for the controlled forms. (example: in the conduct of extension activities)</li></ul>                                                                                                                                                                                                                                                                                               | <ul style="list-style-type: none"><li>Review the collection of information during the Privacy Impact Assessment.</li></ul>                                                                                       |
| <ul style="list-style-type: none"><li>It was inquired whether there is an existing process for the approval of attendance or registration forms.</li><li>It was suggested that the attendance link will be routed through the Data Protection Officer (DPO).</li><li>It was suggested that the use of controlled forms should be considered and a unified form for attendance and registration.</li><li>It was also suggested that the attendance form must be controlled.</li></ul> | <ul style="list-style-type: none"><li>Develop a standardized attendance form with data privacy notice and consent, to be reviewed and to certified as controlled form by the Quality Assurance Office.</li></ul> |

Prepared by:

  
Digitally signed by Padios  
Ian Jay Tabarangao  
Date: 2025.06.10 16:06:17  
+08'00'  
**IAN JAY T. PADIOS**  
Data Protection Officer

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Annex J

Matrix of Benchmarking



| MATRIX OF BENCHMARKING OF DATA PRIVACY MANUAL FROM OTHER HEI's |                                                                                 |                               |                                        |                                       |                        |                                                          |
|----------------------------------------------------------------|---------------------------------------------------------------------------------|-------------------------------|----------------------------------------|---------------------------------------|------------------------|----------------------------------------------------------|
| Category                                                       | Benchmark Criteria                                                              | Davao del Norte State College | University of Southeastern Philippines | University of the Philippines Diliman | De La Salle University | Reference                                                |
| Governance Structure                                           | DPO officially designated with appointment document                             | ✓                             | ✓                                      | ✓                                     | ✓                      | NPC Advisory 2017-01                                     |
| Scope and Application                                          | Clearly defines data subjects and personal data covered                         | ✓                             | ✓                                      | ✓                                     | ✓                      | Data Privacy Act of 2012, Sec. 3                         |
| Data Lifecycle Management                                      | Describes how personal data is collected, used, stored, retained, and disposed  | ✓                             | ✓                                      | ✓                                     | ✓                      | NPC Circular 2022-01                                     |
|                                                                | Presence of retention and disposal schedule                                     | ✓                             | X                                      | X                                     | X                      | NAP General Circular No. 1<br>NAP General Circular No. 2 |
| Privacy Principles Compliance                                  | Demonstrates adherence to transparency, legitimate purpose, and proportionality | ✓                             | ✓                                      | ✓                                     | ✓                      | RA 10173, Sec. 11                                        |
| Data Subject Rights                                            | Clearly enumerates data subject rights and how to exercise them                 | ✓                             | ✓                                      | X                                     | ✓                      | RA 10173, Sec. 16                                        |
|                                                                | Process for handling complaints and requests                                    | ✓                             | ✓                                      | ✓                                     | ✓                      | NPC Advisory 2021-01                                     |

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|                             |                                                                    |   |   |   |   |                      |
|-----------------------------|--------------------------------------------------------------------|---|---|---|---|----------------------|
| Security Measures           | Physical, technical, and organizational security measures outlined | ✓ | ✓ | ✓ | ✓ | NPC Circular 2016-01 |
|                             | Conduct of privacy impact assessments (PIA)                        | ✓ | ✓ | ✓ | ✓ | NPC Circular 2023-06 |
| Data Breach Management      | Clear breach reporting protocols and timelines                     | ✓ | ✓ | ✓ | ✓ | NPC Circular 2016-03 |
|                             | Breach management team designated                                  | ✓ | ✓ | ✓ | ✓ | NPC Circular 2016-03 |
| Third-Party and Outsourcing | Includes data sharing agreements, outsourcing protocols            | ✓ | ✓ | ✓ | ✓ | NPC Circular 2020-03 |
| Training and Awareness      | Privacy training programs                                          | ✓ | ✓ | X | ✓ | NPC Circular 2023-02 |

Prepared by:

IAN J. T. PADIOS  
Data Protection Officer

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Annex K

Records Disposition Schedule

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